

NEWS

Costa Mesa to audit license plate reader program after misuse by police officer



More than 40 Flock automated license plate reader cameras have been installed in Costa Mesa for use by police. An audit into their use has been ordered by the City Council. (Courtesy of the city of Costa Mesa)

By Eric Licas

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Concerned residents and members of the Costa Mesa City Council Tuesday requested an in-depth audit of the police department's use of automated license plate readers and a study of alternatives to Flock Safety.

The tech company leases dozens of cameras monitoring Costa Mesa's streets 24/7 and is the largest provider of license plate readers in the country.

Calls for scrutiny of the city's partnership with Flock — some made by residents who addressed the council during a regular meeting Tuesday — come in the wake of growing concerns about the potential for misuse of widespread automated surveillance networks, with one such case recently coming to light locally.

Former Costa Mesa Police Officer Robert Jay Josett, 35, was fired from the department after investigators learned he had accessed the Flock system 13 times to find and track the whereabouts of his wife, his ex-girlfriend and a person the latter woman was dating. [He has since pleaded guilty](#) to three misdemeanor counts and was sentenced to three years of informal probation, Orange County district attorney's officials announced in an April 14 news release.

"When I saw that article I was very, very concerned about that data, how someone was able to use the data and the system that way," Councilmember Arlis Reynolds said Tuesday. "It did concern me about the information we had been given previously about access control as well."

During an earlier meeting on March 3, Councilmember Loren Gamos cited a statement from the police department noting that it conducts regular audits of Flock data access, and stating no unauthorized use had been reported up to that point. However, Josett's admitted abuse of the system took place between June and December of 2023, according to Orange County district attorney's officials.

Similar cases involving officers allegedly using Flock to stalk people have been reported at police departments in Wisconsin. The tech company has also come under fire since audits revealed Immigration and Customs Enforcement was able to obtain license plate reader data from the California cities of Oxnard, Mountain View and Santa Cruz, despite state laws barring federal agencies from accessing that information.

Flock has since announced it has updated its software to close any back doors federal agencies might have been able to exploit to gain access to databases in California. But concerned residents at this week's meeting weren't satisfied to take the surveillance company at its word.

"All this data transfers to a private corporate database that the city's IT and police department have zero control over," said Brooke Grey, a community organizer with Food Not Bombs — Costa Mesa.

She was one of three members of the public who called on the city to conduct a more in-depth audit and consider either substantially amending its data-sharing agreement with Flock or terminate their contract entirely.

Councilmembers Reynolds, Andrea Marr, Mike Buley, Mayor Pro Tem Manuel Chavez and Mayor John Stephens responded to their comments, mostly relating with their concerns. But they also acknowledged license plate readers have greatly improved public safety in Costa Mesa and were hesitant to lose a powerful crime-fighting tool.

Stephens said surveillance technology like automated license plate readers and Ring cameras have contributed to a reduction in crime not just in Costa Mesa, but nationwide.

"I don't want to have a knee-jerk reaction and roll back something that had done a lot of good in solving crimes," Chavez agreed. "I know in my district in particular there's a Flock camera that, I won't say where it's at, but it's been very very helpful for us to track down people doing bad things in Costa Mesa. And I don't want to lose that, [even] due to some very valid fears."

Marr noted Flock is not the only tech company providing and servicing automated license plate reader systems. She suggested the city look into those alternatives for a contractor that might do a better job of safeguarding the data collected by citywide surveillance.

“I do think it’s a reasonable ask to research, see if there’s other similar type products out there that don’t have some of the violation of surveillance rights,” Buley said.

The Costa Mesa Police Department is in the process of developing a real-time crime center that would have integrated license plate readers and other technology. It’s not immediately clear how any changes to the city’s agreement with Flock might affect the project.

Department spokesperson Roxi Fyad said Friday staff is actively working “to be responsive” to the City Council’s request and the concerns of community members.

“Once we are ready to present information and findings to the Council and public, we’ll do so,” she said.



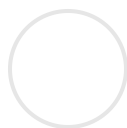
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